

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of	)	
	)	Investigation No. 337-TA-563
	)	
CERTAIN PORTABLE POWER	)	
STATIONS AND PACKAGING	)	
THEREFOR	)	
	)	

**COMPLAINANT ROADMASTER’S SUBMISSION ON REMEDY, THE PUBLIC
INTEREST, AND BONDING**

I. Introduction

On August 23, 2006, the Commission issued a notice requesting briefing on remedy, the public interest, and bonding with respect to the only respondent, Sinochem Ningbo LTD (“Sinochem”). This investigation concerned the unlawful importation into the United States of portable power stations that violate the patent, trademark, and copyright infringement of complainant Roadmaster (USA) Inc. (“Roadmaster”). Sinochem did not appear before the Commission during this investigation and has been found in default.

For the reasons that follow, Roadmaster respectfully requests that the Commission enter a limited exclusion order against Sinochem, barring importation of infringing portable power stations. Roadmaster submits that the public interest favors the entry of a limited exclusion order to protect Roadmaster’s domestic industry and the public, and that there will be no harm to the public interest from entering the requested order. Finally, consistent with standard practice, Roadmaster requests that any bond to be imposed during the period of Presidential review be set at one hundred percent of entered value.

II. Background

The Commission instituted this investigation against Sinochem by notice issued on March 9, 2006. That notice was based on a complaint submitted by Roadmaster. The complaint, as amended and supplemented, alleged violations of Section 337 of the Tariff Act of 1930 (19 U.S.C. § 1337). Roadmaster stated in its Complaint that portable power stations and the packaging therefor being manufactured by Sinochem in China and imported for sale into the United States violated Roadmaster's patent, trademark, and copyright rights, specifically Design Patent No. D469,739; Trademark Registration No. 2,594,538; and Copyright Registration No. VA-1-261-495.

Sinochem did not respond to the complaint or other documents served upon it during the course of this investigation. Accordingly, on May 9, 2006 Roadmaster moved for an order directing Sinochem to show cause why it should not be held in default, and for a determination of default. Sinochem did not appear or show cause. On July 12, 2006, pursuant to 19 U.S.C. § 1337(g)(1) and Commission Rule 210.16, the Administrative Law Judge issued an initial determination of default against Sinochem. On July 21, 2006, the Commission issued a notice declining to review that initial determination. On August 9, 2006, Roadmaster filed a declaration requesting immediate relief against Sinochem. On August 23, 2006, the Commission issued a notice requesting this submission on remedy, the public interest, and bonding.

III. The Rights at Issue

The Commission's August 23, 2006 notice requested that Roadmaster submit the dates on which the intellectual property rights at issue expire and the HTSUS numbers under which the accused products are imported, among other things. Design Patent No. D469,739 issued on February 4, 2003 for a term of fourteen years. It will expire, therefore, on February 4, 2017. Trademark No. 2,594,538, registered on July 16, 2002, will expire on July 16, 2012. Copyright

Registration No. VA-1-261-495 was deemed registered on July 15, 2004, and will expire on July 15, 2099. The articles subject to this investigation may be classified under Section 8507 et seq. of the HTSUS (electric storage batteries).

IV. Proposed Remedy

Roadmaster requests the entry of a limited exclusion order against Sinochem. A proposed form of order is attached as Attachment A. When a respondent is found in default and a complainant seeks relief only against the defaulting respondent,

the Commission shall presume the facts alleged in the complaint to be true and shall, upon request, issue an exclusion for entry or a cease and desist order, or both, limited to that person unless, after considering the effect of such exclusion or order upon the public health and welfare ... the Commission finds that such exclusion or order should not be issued.

19 U.S.C. § 1337(g)(1)(e). The Commission “has broad discretion in selecting the form, scope, and extent of the remedy in a section 337 proceeding.” Certain Integrated Circuit Telecommunications Chips, No. 327-TA-337 (Comm. Op. at 21).

Roadmaster requests that the Commission issue a limited exclusion order directed to Sinochem barring the importation of its portable power stations and components thereof that misappropriate Roadmaster’s protected patent, trademark, and copyright. As cease and desist orders are not generally requested against foreign respondents, and Roadmaster has no evidence that Sinochem or any subsidiary or related entity currently maintain an inventory of infringing power stations in the United States, Roadmaster does not request a cease and desist order. A limited exclusion order in the form attached hereto will provide adequate relief to Roadmaster.

V. The Public Interest

Issuing a limited exclusion order against Sinochem will be in the public interest. 19 U.S.C. § 1337(g)(1)(e) requires that the Commission consider the effect of an exclusion order

on: the public health and welfare; competitive conditions in the U.S. economy; the production of like or competitive articles in the United States; and United States consumers. There are no public interest concerns that would preclude issuing the requested order in this case. The products to be excluded here are portable power stations. Thus, the public health and welfare are not implicated. With respect to competitive conditions and the production of like or competitive articles, there is no reason to believe that the domestic demand for portable power stations cannot be met by concerns other than Sinochem, such as Roadmaster. Furthermore, the proposed order will be limited in scope and will not disrupt legitimate trade in products that do not infringe on Roadmaster's specific protections. With respect to United States consumers, the public interest favors the protection of U.S. intellectual property rights. The public interest also favors the protection of consumers from confusion as to the maker of the protected products. For all of these reasons, Roadmaster submits that the public interest will be advanced by entering the requested limited exclusion order.

VI. Bonding

Pursuant to 19 U.S.C. 1337(j), the President is given the opportunity to review the order entered by the Commission in this matter. During the statutorily-prescribed time period, the accused products are permitted entry into the United States under bond. Although the bond is generally based on the difference between the sales price for the domestic unit and the price for the infringing product, here Sinochem has not participated in the investigation. Thus, it is difficult or impossible to determine this price differential. Where it is difficult or impossible to determine the price differential, and particularly where those circumstances are due to the respondent's failure to appear, the Commission has set the bond at 100 percent of entered value. Certain Lens Fitted Film Packages, No. 337-TA-406 (Comm. Op. at 19)(June 28, 1999). Thus, Roadmaster requests that the bond imposed on Sinochem be 100 percent of entered value.

VII. Conclusion

For the reasons stated herein, complainant Roadmaster respectfully requests entry of a limited exclusion order in the form attached hereto.

Respectfully submitted,

/s/Christopher L. Soriano

James Greenberg, Esquire

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Dated: September 5, 2006

CERTIFICATE OF SERVICE

I, Christopher L. Soriano, hereby certify that the attached Submission on Remedy, Bonding, and the Public Interest was served upon the following by First Class Mail, postage prepaid, on September 5, 2006:

David O. Lloyd, Esquire
Commission Investigative Attorney
United States International Trade Commission
500 E Street SW
Washington DC 20436

/s/Christopher L. Soriano
Christopher L. Soriano

ATTACHMENT A

**UNITED STATES INTERNATIONAL TRADE COMMISSION
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(PROPOSED) LIMITED EXCLUSION ORDER

The Commission instituted this investigation on March 9, 2006 based on a Complaint filed on February 9, 2006 by Roadmaster (USA) Inc. (“Roadmaster”) of Eatontown, New Jersey, against Respondent Sinochem Ningbo, LTD (“Sinochem”). 71 Fed. Reg. 13,166 (March 14, 2006). The Complaint alleged violations of section 337 of the Tariff Act of 1930, 19 U.S.C. § 1337, in the importation into the United States, the sale for importation, and the sale within the United States after importation of certain portable power stations and the packaging therefore, by reason of misappropriation of Roadmaster’s patent, trademark, and copyright protection. Respondent Sinochem did not respond to the complaint, the notice of investigation, or an order to show cause why it should not be found in default. Accordingly, pursuant to Section 337(g)(1), 19 U.S.C. § 1337(g)(1), and Commission Rule 210.16(a), 19 C.F.R. § 210.16(a), the Commission found Sinochem to be in default. The Commission therefore presumes the facts alleged in the Complaint to be true.

Having reviewed the record in this investigation, including the written submissions of the parties, the Commission has reached a determination on the issues of remedy, the public interest, and bonding. The Commission has determined that the appropriate form of relief is a limited exclusion order prohibiting the unlicensed entry of portable power stations and packaging

therefor that infringe Roadmaster's patent, trademark, and copyright protections as described in the Complaint and that are manufactured abroad by or on behalf of, or imported by or on behalf of, Sinochem.

The Commission has further determined that the public interest factors enumerated in 19 U.S.C. § 1337(d) do not preclude issuance of this limited exclusion order, and that any bond sought by Respondent during the Presidential review period shall be in the amount of 100 percent of the entered value of portable power stations and packaging therefor that are subject to this Order.

Accordingly, the Commission hereby **ORDERS** that:

1. Portable power stations and packaging therefore that infringe Roadmaster's patent, trademark, or copyright protection, manufactured abroad by or on behalf of, or imported by or on behalf of, Sinochem Ningbo LTD, or any of its affiliated companies, parents, subsidiaries, or other related business entities, or their successors or assigns, are excluded from entry for consumption into the United States, entry for consumption from a foreign trade zone, or withdrawal from a warehouse for consumption, except under license by Roadmaster as provided by law.

2. For the purpose of assisting the Bureau of Customs and Border Protection in the enforcement of this Order, and without limiting in any way the scope of the Order, the Commission has attached to this Order a copy of the photographs provided by Roadmaster in its Complaint which depict portable power stations and packaging therefor incorporating the protections described above.

3. Portable power stations and packaging therefor that are excluded by Paragraph 1 of this Order are entitled to entry for consumption into the United States, entry for consumption

from a foreign trade zone, or withdrawal from a warehouse for consumption, under bond in the amount of 100 percent of entered value pursuant to subsection (j) of section 337 of the Tariff act of 1930, as amended, 19 U.S.C. § 1337(j), from the day after this order is received by the President until such time as the President notifies the Commission that he approves or disapproves this action but, in any event, not later than sixty days after the receipt of this order.

4. In accordance with 19 U.S.C. § 1337(l), the provisions of this Order shall not apply to portable power stations and packaging therefor that are imported by and for the use of the United States, or imported for, and to be used for, the United States with the authorization or the consent of the government.

5. The Commission may modify this Order in accordance with the procedures described in Section 210.76 of the Commission's Rules of Practice and Procedure, 19 C.F.R. § 210.76.

6. The Secretary shall serve copies of this Order upon each party of record in the investigation and upon the Department of Health and Human Services, the Department of Justice, the Federal Trade Commission, and the Bureau of Customs and Border Protection.

7. Notice of this Order shall be published in the Federal Register.

By Order of the Commission:

Marilyn R. Abbott, Secretary

Issued: _____